

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

**Present:**

**Mr. Justice Md. Moinul Islam Chowdhury**

**Civil Revision No. 1575 of 2006**

Chairman, Bangladesh Inland Water  
Transport Authority (BIWTA), BIWTA  
Bhaban 141-143, Motijheel Commercial  
Area, Dhaka.

..... Petitioner

-Versus-

Bangladesh Tailbahi Jahaj Malik Samity,  
represented by its president and Others.

..... Opposite Parties

Mr. Obaidur Rahman Mustafa, with  
Mr. Lutfor Rahman, with  
Mr. Mohammad Anowarul Islam and  
Mr. Shafiqur Rahman, Advocates

..... For the petitioner

Mr. M. C. Chowdhury, Advocate

..... For the Opposite Party

Heard on 26.07.2016, 31.07.2016,  
01.08.2016 and

**Judgment on 22.08.2016**

At the instance of the Defendant No. 2, Respondent-Petitioners, the  
Chairman, Bangladesh Inland Water Transport Authority (BIWTA), this  
Rule has been issued calling upon the opposite party Nos. 1 and 2 to show  
cause as to why the judgment and decree dated 23.02.2006 passed by the  
learned Additional District Judge, Second Court, Dhaka, in Title Appeal  
No. 527 of 2003 allowing the appeal thus rescinding the judgment and  
decree dated 21.10.2003 passed by the learned Assistant Judge, First Court,  
Dhaka in Title Suit No. 199 of 2001, dismissing wrongly (written  
decreeing) 3 the suit shall not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite party Nos. 1 and 2 as the plaintiffs filed the Title Suit No.199 of 2001 in the court of the learned Assistant Judge, First Court, Dhaka praying for a declaration that imposition of conservancy and Pilotage Service Fees Rules 1990 over the costal ships and tankers of the plaintiffs established under the Merchants Shipping Ordinance, 1983 is illegal and also for a declaration that letters dated 17.06.2001 and 25.06.2001 and circular vide letter No. M-2/15/47(40) are illegal and unlawful.

The plaint case of the said suit contains that the tankers and costal rent by the members of the plaintiffs' associations are regulated under the Merchant Shipping Ordinance, 1983 and are registered under the Mercantile Marine Department and they have been transporting petroleum, fuel and other goods in the river ways for long period of time. As per the Merchant Shipping Ordinance, the defendant No. 2-petitioner has no authority over them. The inland vessels which are regulated under the Inland Shipping Ordinance 1976 are transporting goods in the river ways as regulated by BIWTA. The Inland Shipping Ordinance 1976 and the Merchant Shipping Ordinance 1983 categorically define the navigation jurisdiction of the costal ships and inland ships. The defendant No. 2 has been empowered to collect conservancy fees for the preservation and development of the inland water-ways and the ports. River Conservancy and Pilotage Service Fees Rules 1990 was promulgated under the BIWTA Ordinance 1958 and conservatory fees were imposed over the inland vessels illegally the same fees were imposed over the coastal ships as per

Rule 3(9) of the said Rules. To impose any restrictions over the tankers or coastal ships only the Merchant Shipping Ordinance shall be applicable where there is no provisions of imposing fees under the Ordinance over the coastal ships. Tankers and costal ships cannot be included within the definitions of Inland Ships under the River Conservancy and Pilotage Service Fees Rules 1990 and as such, any fees imposed by the said Rules is not binding upon the plaintiffs.

The suit has been contested by the present defendant-2 petitioner, BIWTA, by filing a written statement contending, inter alia, that BIWTA was constituted under the BIWTA Ordinance 1958 which has authority over both kinds of vessels. There is no conflict between the 1976 Ordinance and the 1983 Ordinance. All ships can run between ports and the other places. River Conservancy and Pilotage Service Fees Rules 1981 was first published by the notification by which all vessels using the inland water ways are made liable to pay conservancy fees. The said Rules was amended in 1990 and all the vessels were paying conservancy fees since 1981. BIWTA spends about 18 to 20 crore a year for the conservancy and development of the water ways but the amount it receives by way of fees is not more than Tk. 2.00 crore. The plaintiffs are using the water ways of the BIWTA but they are not paying the conservancy fees. Further, it is only the Highest Court which can declare any provision of law illegal or contrary to each other and as such the suit in the present form is not maintainable.

After hearing both the parties the learned Assistant Judge, 4<sup>th</sup> Court, Dhaka by its judgment and decree dated 21.10.2003 dismissed the suit. Being aggrieved by and dissatisfied by said judgment and decree the

present opposite parties as the appellants preferred the Title Appeal No. 527 of 2003 in the court of learned District Judge, Dhaka which was heard by the learned Additional District Judge and Sessions Judge, 2<sup>nd</sup> court, Dhaka on transfer who by his judgment and decree dated 23.02.2006 allowed the appeal by setting aside the judgment and decree passed by the trial court. This revisional application has been filed under section 115(1) of the Code of Civil Procedure challenging the illegality of the judgment and decree passed by the learned appellant court and the Rule was issued thereupon.

Mr. Obaidur Rahman Mustafa, the learned Advocate appearing along with the learned Advocate Mr. Lutfor Rahman which has been authorized by Mr. Obaidur Rahman Mustafa, the learned Advocate appearing on behalf of the petitioner BIWTA submits that the learned appellate court committed error of law resulting in an error of decision occasioning failure of justice as he failed to appreciate the imposition of conservancy fee is not governed by Merchant Shipping Ordinance 1983, rather it is regulated by separate provision of law, namely the River Conservancy and Pilotage Service Fees Rules 1990 which deals with all ships under the Inland Shipping Ordinance 1976.

The learned further submits that the learned appellate court failed to appreciate that the conservancy fee has been imposed upon the opposite parties by an statutory instrument published in the official gazette and the lower court does not have the jurisdiction to question the validity of any of the provision of the statutory instrument and the learned appellate court by allowing the appeal and thus decreeing the suit in effect made part of Rule

3 of the River Conservancy and Pilotage Service Rules 1990 ineffective and redundant which the learned appellate court does not have the jurisdiction.

The learned also submits that after considering the documents and depositions on behalf of the respective parties adduced and produced by the respective parties dismissed the suit filed by the opposite parties. However, the learned appellate court below without considering the evidence misreading the documents produced by the parties came to a wrongful conclusion, therefore, allowed the appeal and setting aside the judgment and decree passed by the learned trial court but it is not a proper judgment for reversal as the learned appellate court has only to consider the finding of the learned trial court, as such, the Rule should be made absolute.

The Rule has been opposed by the plaintiff-appellant-opposite party Nos.1 and 2.

Mr. M.C. Chowdhury, the learned Advocate appearing for the opposite party Nos. 1 and 2 submits that the learned appellate court below allowed the appeal filed by the present opposite parties on the basis of the documents and evidence produced by the respective parties but the learned Assistant Judge failed to understand the materials before him, therefore, wrongfully decided to dismiss the suit filed by the present opposite parties as the plaintiffs, as such, there is no illegality in the impugned judgment passed by the appellate court below, thus the Rule should be discharged.

The learned Advocate further submits that the learned Assistant Judge failed to understand the case of the plaintiffs thereby decided that the civil court does not have any jurisdiction to deal with the matter regarding

interpretation of the law or declaring any law illegal because only the High Court of the Supreme Court of Bangladesh is authorized to interfere or declaring any law illegal. On the other hand the learned appellate court below given an adequate interpretation that a civil court has an authority to entertain or declaring any law illegal even any provision of the constitution under Order 27A Rules 1 and 2 of the Code of Civil Procedure, therefore, there is no illegality in the impugned judgment and decree passed by the learned appellate court below, therefore no interference is called for from this court.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with its Annexure therein, in particular, the impugned judgment and decree and also considering the lower court records, it appears to me that the present opposite parties No. 1 and 2 as the plaintiffs filed the title suit in the court of learned Assistant Judge, 4<sup>th</sup> court, Dhaka for a declaration that imposition of conservancy fee under Rules, 1990 over the coastal ships tankers run by the members of the plaintiffs association. The claim of the plaintiffs-opposite parties are that the governing law of their association is the merchants shipping ordinance as they have been under the associations and registered under the Mercantile Marine Department for transporting petroleum fuel and other goods within the Inland River Way, therefore, the BIWTA being the Inland River Transport Authority does not have any control or management of the activities of the plaintiffs association, therefore, any imposition of fees upon coastal ships or tankers as per

“নৌসংরক্ষন ও পরিচালনা এবং পথ নি-র্দশনা ফিস বিধিমালা- ১৯৯০” and any imposition of fees is beyond the capacity of law. The above statement of the present plaintiff-opposite parties however controverted by only defendant No.2-petitioner BIWTA accepting that BIWTA has been constituted under the BIWTA Ordinance, 1958. It has the authority to claim fees from the tankers and coastal and oil tankers running within the Inland Water Ways under the provision of বিধিমালা, ১৯৯০.

The admitted position in this case is that the plaintiff-opposite parties are Associations of Oil Tankers and Coastal Ship, therefore the ship or the vessel owned by the members of the association are mainly ship and vessel in the coastal area. However, the dispute between the parties is whether the members of the association of the present opposite parties No. 1 and 2 have any kind of ship or transportation to carry Oil or fuel are transported within Inland River or not. In this regard I have examined the lower court records as well as the deposition and documents of this case and I am satisfied that the explanation given by the present petitioner BIWTA that the fuel and petroleum are carried through the Inland River Water ways and the BIWTA is authorized for imposition fees upon the costal and Oil Tanker which are running or transporting within the Inland Water Ways. In this regard the “-নৌ-সংরক্ষন ও পরিচালন এবং পথ নি-র্দশনা ফিস বিধিমালায়” the relevant laws for imposition any fees upon any ship running within Inland Water under the following provision of law:-

এস, আর, ও নং ৪২৮-আইন/৯০/অগ্র/বিধি-২/৯০-Bangladesh Inland Water Transport Authority Ordinance, 1958 (E.P. Ord. LXXV of 1958) Hl section 19 এর sub-section (3) [ উক্ত section (2) এর clause (VII) সহ গঠিত] তে প্রদত্ত ক্ষমতাব-ল এবং এতদসংক্রান্ত পূ-র্বর প্রণয়কৃত সকল বিধিমালা রহিতকরনপূর্বক সরকার নিম্নরূপ বিধিমালা প্রণয়ন করি-লন, যথাঃ-

১। সংক্ষিপ্ত শিরনামা ও প্রবর্তন। -(১) এই বিধিমালা নৌ-সংরক্ষণও পরিচালন এবং পথ নি-র্দশনা ফিস বিধিমালা, ১৯৯০ না-ম অভিহিত হই-ব।

(২) এই বিধিমালা সাধারণ নিয়ম অনুযায়ী এবং কোন বি-শেষ বিধির ক্ষেত্রে উ-ল্লিখিত তারিখ/সময় হই-ত বলবৎ হইয়া-ছ বলিয়া গণ্য হই-ব।

২। সংজ্ঞা- বিষয় বা প্রসং-গর পরিপন্থি কোন কিছু না থাকি-ল, এই বিধিমালায়-

(ক) অভ্যন্তরীণ জাহাজ বলি-ত ইনল্যান্ড শিপিং অধ্যা-দশ, ১৯৭৬ (Ord. No. LXXII of 1976) এ বর্ণিত জাহাজ-ক বুঝাই-ব; এবং

(খ) মালিক বলি-ত অভ্যন্তরীণ জাহা-জর নিবন্ধনকৃত সন-দ উ-ল্লিখিত মালিক-ক বুঝাই-ব।

৩। নৌ-সংরক্ষণ ফি- প্র-ত্যক অভ্যন্তরীণ জাহা-জর উপর নিম্নোক্ত হা-র ধার্যকৃত নৌ-সংরক্ষণ ফি জাহাজ মালিক-ক পরি-শোধ করি-ত হই-ব, যথাঃ-

(ক) যাত্রীবাহী অভ্যন্তরীণ মালবাহী জাহা-জর জন্য :

|                             |         |                     |      |
|-----------------------------|---------|---------------------|------|
| (১) কোপ্টার                 | টাকা ৩৯ | প্রতি গ্রস টন প্রতি | বৎসর |
| (২) অ-য়ল ট্যাংকার          | টাকা ৮৮ | এ                   | এ    |
| (৩) ফুট                     | টাকা ৭  | এ                   | এ    |
| (৪) বার্জ                   | টাকা ৭  | এ                   | এ    |
| (৫) টাগ                     | টাকা ১২ | এ                   | এ    |
| (৬) স্বয়ংক্রিয় যন্তুচালিত | টাকা ১৪ | এ                   | এ    |

নৌ-যান (Self-propelled vessel)

The learned Advocate for the opposite party Nos. 1 and 2 claim that imposition any conservancy fees by বিধিমালা shall be double jeopardy for the members of the defendant-petitioner's association because they have to bear taxes for the coastal authorities as well as Inland Authorities. In this regard I consider the coastal authorities and the Inland River Authorities are different jurisdictions with different types of services, therefore, as per বিধিমালা ১৯৯০ any imposition cannot be declared illegal or without lawful authority unless or until it is declared illegal by the higher court of Bangladesh.

The court below came to a conflicting conclusion on the basis of jurisdiction of the civil court to hear a case where the legality of any provision of law has been challenged by way of filing a civil suit. In this regard the learned trial court came to a conclusion that a civil court cannot declare any provision of law as illegal as the only higher court of the

country has an authority, therefore, the learned trial court dismissed the suit filed by the present opposite parties for declaring the imposition of fees pursuant to the section 3 of the বিধিমালা ১৯৯০ on the basis of the following findings:-

“তপছিল বর্ণিত আ-দশ, গনপ্রজাতন্ত্রী বাংলা-দশ সরকার নৌপরিবহন মন্ত্রণালয়-র টি,এ, শাখা এবং গনপ্রজাতন্ত্রী বাংলা-দশ সরকার-র সমুদ্র পরিবহন অধিদপ্তর এবং গনপ্রজাতন্ত্রী বাংলা-দশ সরকার-র নৌ বাণিজ্য অধিদপ্তর হ-ত জারী করা হ-য়-ছ। বাদীপক্ষ-র মূল বক্তব্য হ-ছে বিবাদীগণ বিদি বহির্ভূত ভা-ব বা-টায়া এবং কোয়া-বর সদস্য-দর উপর বিতর্কিত কনজার-ভন্সী ফিস আ-রাপ ক-র-ছন। এবং ফিস ব-কয়া থাক-ল সা-ভ সার্টিফি-কট নবায়ন ও প্লাইং পারমিট স্থাপিত রাখার নি-র্দেশ দেয়া হ-য়-ছ। এই তর্কিত আ-দশ বে-আইনী ও অকার্যকর ম-র্ম বাদীপক্ষ দাবী ক-রন। পক্ষান্ত-র বিবাদীপক্ষ তর্কিত আ-দশ সঠিক ও আইননানুগ ম-র্ম উ-ল্লখ ক-রন।

ই-তাপূ-র্বর আ-লাচনার ধারাবাহিকতায় নথি এবং দালিলিক ও মৌখিক সাক্ষ্যাদি পর্যা-লাচনায় এই আদালত সুস্পষ্ট অভিমত পোষন ক-র যে, তফসিল বর্ণিত আ-দ-শর মাধ্য-ম বাদীপক্ষ ক্ষতিগ্রস্থ হ-লও বাদীগ-নর এই মোকদ্দমা এই আদাল-ত আনয়ন করার যৌক্তিক কো-না কারন নেই। কনজার-ভন্সী ফিস আদায় বিষ-য় মন্ত্রণালয় কর্তৃক প্রদত্ত তর্কিত আ-দশ বে-আইনী ও অকার্যকর কিনা তা ঘোষণা করার এখতিয়ার এই আদাল-তর নেই। এমতাবস্থায় মোকাদমাটি বর্তমান আকা-র রক্ষণীয় নয়। বাদীপক্ষ প্রার্থিত প্রতিকার পে-ত আইনত: ও ন্যায্যত হকদার নয়।”

On the other hand, the learned appellate court below came to a conclusion that any civil court can entertain any matter where interpretation of law for declaration of law to be illegal even the constitutional provision within the frame work of Order 27 Rules 1 and 2 of the Code of Civil Procedure and, therefore, came to a wrongful conclusion on the basis of the following findings:-

“বিজ্ঞ নিম্নআদালত তাহার রা-য় উ-ল্লখ করিয়া-ছন অত্র মোকদ্দমার বিচার করিবার এখতিয়ার অত্র আদাল-তর নাই। এই প্রসং-গ আপীল্যান্ট প-ক্ষর বিজ্ঞ আইনজীবী শুনানী কা-ল বলিয়া-ছন দেঃ কাঃ বিঃ ১ ধারার আই-নর প্রতক্ষ বা অ-প্রতক্ষ কারণ না থাক-ল সকল প্রকার দেওয়ানী মোকদ্দমা দেওয়ানী আদাল-ত বিচার্য। এমনকি দে-শর স-র্বাচ্চ আইন সংবিধা-নর কোন বিধা-নর ব্যাখ্যার প্রশ্ন ও যদি মোকদ্দমায় জড়িত থা-ক সে ক্ষেত্রে এটনি জেনা-রল-ক নোটিশ প্রদান করিয়া তাহার প-ক্ষ শুনানী অ-ন্ত নিষ্পত্তি করিবার জন্য দেঃ কাঃ বিঃ ২৭ নং আ-দ-শর ১ ও ২ নং বিধি-ত বিধান রহিয়া-ছ।”

From the above two conflicting judgment I am of the view that the learned appellate court has committed an error of law by allowing the

appeal on the ground of the authority under the provision of Order 27 Rules 1 and 2 of the C.P.C which reads as follows:-

[ORDER XXIIA  
SUITS INVOLVING ANY SUBSTANTIAL QUESTION AS  
TO  
THE INTERPRETATION OF CONSTITUTIONAL LAW

1. In any suit in which it appears to the court that any substantial question as to the interpretation of constitutional law is involved, the court shall not proceed to determine that question until after notice has been given to the Attorney General for Bangladesh if the question of law concerns the Government 3(\*\*\*)]. ”

From the above provision of law under the Code of Civil Procedure a civil court has the authority only to entertain the constitutional law upon complying certain authority but the civil courts do not have any jurisdiction to entertain the constitution matter or declaring any provision of any statute as illegal because under the constitution of Bangladesh only Supreme Court have authority to interpret the provision a of constitution and also to declare a law ultravires under Article 26 of the Constitution of Bangladesh only if, a law is inconsistent with the fundamental right under part 3 of the Bangladesh Constitution. In such circumstances the Supreme Court has the right to declare any law void but such right has not been vested upon any civil court. In such circumstances, I consider that the learned appellate court below committed an error of law by allowing the appeal on the ground for imposition of conservancy fees by section 3 of the বিধিমালা ১৯৯০ declaring illegal, therefore, came to a wrongful conclusion which is liable to be set aside. I am, therefore, including to interfere into the judgment and decree passed by the learned appellate court.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The judgment and decree passed by the learned Assistant Judge, 4<sup>th</sup> Court, Dhaka on 21.10.2003 is hereby declared valid and lawful but the judgment and decree passed by the learned Additional District Judge, 2<sup>nd</sup> Court, Dhaka on 23.02.2006 in Title Appeal No. 527 of 2003 is hereby set aside.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the judgment and decree dated 23.02.2006 passed by the learned Additional District Judge, second Court, Dhaka in Title Appeal No. 52 7 of 2003 is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned and also send down the Lower Court Records immediately.